

Defendants' request to present oral testimony at the hearing is denied as unnecessary.

Finally, the Court notes that there is a serious conflict between the proofs of service showing that Schlipp served the defendants, which Plaintiff claims he received from Schlipp, and Schlipp's declaration stating that he did not sign those documents and did not give them to Plaintiff. The Court need not resolve this conflict to decide this motion because whether or not Plaintiff or Schlipp is incorrect in their statement of what occurred, the current evidence before the Court is that Defendants were not served in this case.

12. 9:00 AM CASE NUMBER: C25-01983
CASE NAME: KURT VOSS VS. GREGORY GOMES
***MOTION/PETITION TO COMPEL ARBITRATION MOVED FROM C24-02149**
FILED BY: GOMES, GREGORY
TENTATIVE RULING:

Defendant, Gregory Gomes, moves the Court under the California Arbitration Act ("CAA") to compel plaintiffs to arbitrate the claims set forth in their complaint, and to stay this action pending the outcome of arbitration. Because Gomes has established an enforceable arbitration agreement exists that would cover the dispute here, the motion is **granted**. Parties shall submit the dispute to arbitration and the case is stayed pending the outcome.

A status conference is set for 8:30 a.m. on August 26, 2026, to update the Court regarding the arbitration proceedings.

I. Background

Plaintiffs, Kurt Voss and Cathy Huang, allege that their properties (160 Valley Hill Drive and 210 Valley Hill Drive in Moraga, California, respectively) are in a remote area not served by any water district requiring them to rely on the Valley Hill Water System. The Valley Hill Water System, a private system of wells, springs, storage tanks, and water lines provides potable and emergency water to their properties and the properties of certain neighbors.

Plaintiffs enumerate various components relevant to their allegations, including (1) the Turre/Mitchell Bore, (2) the Turre Spring, (3) the Turre Well, (4) two Community Tanks, (5) pipelines connecting various other components, and (6) the Common Line, which connects the Community Tanks to a parcel owned by the Chimnis (nonparties).

Plaintiffs filed this action on July 9, 2025, alleging that defendant Gomes, on whose property various of the above system components are located, has repeatedly damaged the system and prevented plaintiffs from performing necessary repairs. Plaintiffs allege eleven causes of action: (1) Breach of Express Easements; (2) Equitable Easement; (3) Breach of Contract; (4) Negligence; (5) Nuisance; (6) Trespass; (7) Trespass to Chattels; (8) Violation of Civil Code, § 845; (9) Violation of Cal. Const., Art. X, § 2, and Water Code, § 100; (10) Permanent Injunction; and (11) Declaratory Relief. Plaintiffs obtained a preliminary injunction enjoining Gomes from diverting water, obstructing easements, damaging the system, etc.

In response, defendant filed this motion to compel arbitration. The motion invokes the arbitration provision found in paragraph 17 of the Water Rights Agreement, which is attached to the complaint.

Plaintiffs oppose the motion, arguing the 1999 Water Rights Agreement does not govern because their claims do not “arise out of,” and are not otherwise “in connection” with the Water Rights Agreement because the claims do not concern the Turre Well or a replacement well. Plaintiffs argue they have not used the Turre Well in over ten years. They highlight the language in the 1999 agreement which specifically refers to the Turre Well and to “replacement wells.”

II. Evidentiary Matters

Defendant requests judicial notice of the complaint. The request is **granted**.

III. Standard

Code of Civil Procedure section 1281.2, first paragraph, requires the superior court to order arbitration of a controversy if it determines that an agreement to arbitrate “the controversy” exists. The threshold questions thus presented by every motion to compel arbitration are (1) whether an agreement to arbitrate exists and (2) and, if so, whether the parties' dispute falls within the scope of that agreement. (*Ahern v. Asset Management Consultants, Inc.* (2022) 74 Cal.App.5th 675, 686-687, citing *Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.) The party opposing arbitration has the burden of demonstrating that an arbitration clause cannot be interpreted to require arbitration of the dispute. (*Rice v. Downs* (2016) 248 Cal.App.4th 175, 185, citation omitted.)

While California has a strong public policy in favor of arbitration, which has resulted in the general rule that arbitration should be upheld “unless it can be said with assurance that an arbitration clause is not susceptible to an interpretation covering the asserted dispute,” this policy does not override ordinary principles of contract interpretation. (*Rice v. Downs* (2016) 248 Cal.App.4th 175, 185.)

The contractual terms themselves must be carefully examined before the parties to the contract can be ordered to arbitration and “[t]he court should attempt to give effect to the parties' intentions, in light of the usual and ordinary meaning of the contractual language and the circumstances under which the agreement was made.” (*Id.* at 185, citations omitted.) “[T]he terms of the specific arbitration clause under consideration must reasonably cover the dispute as to which arbitration is requested.” (*Ibid.*)

In making this determination, the ordinary rules of contract interpretation apply. (*Rice, supra*, 248 Cal.App.4th at 185, citations omitted.) “The court should attempt to give effect to the parties' intentions, in light of the usual and ordinary meaning of the contractual language and the circumstances under which the agreement was made (Civ. Code, §§ 1636, 1644, 1647).” (*Rice, supra*, 248 Cal.App.4th at 185-186, citations omitted.) The whole of a contract is to be taken together, so as to give effect to every part, if reasonably practicable, each clause helping to interpret the other. (*Id.* at 186, citing Civ. Code, § 1641.) A court must view the language in light of the instrument as a whole and not use a “disjointed, single-paragraph, strict construction approach.” (*Id.* at 186, citations omitted.) An interpretation that leaves part of a contract as surplusage is to be avoided. (*Ibid.*)

The decision as to whether a contractual arbitration clause covers a particular dispute rests substantially on whether the clause in question is “broad” or “narrow.” (*Ahern, supra*, 74 Cal.App.5th at 689; *Rice, supra*, 248 Cal.App.4th at 185-187.) A broad clause includes language that requires arbitration of “any claim arising from or related to” the agreement, while a narrow clause typically includes language that requires arbitration of “a claim, dispute, or controversy” that “arises from” or “out of” an agreement.” (*Ahern, supra*, 74 Cal.App.5th at 689-690; see also *Rice, supra*, 248

Cal.App.4th at 185-187.) Narrow clauses are interpreted to be more limited in scope and generally exclude language such as “relating to this agreement” or “in connection with this agreement.” (*Ibid.*)

IV. Analysis

Both sides here appear to agree that their predecessors were the ones to enter into the Water Rights Agreement, which requires arbitration of certain claims. Both sides further appear to agree that they, as the successors in interest, are bound by those terms.

In its recitals, the Water Rights Agreement identifies its purpose “to amend, modify and further define the rights and obligations of all parties with respect to the taking and use of water from Parcel One [Gomes’ parcel].” This purpose is broad and, along with paragraph three of the agreed terms, indicates parties contemplated new obligations (such as arbitration) as part of the agreement.

After setting forth the recitals, the Water Rights Agreement states in paragraph three that the rights described in the Water Rights Agreement take precedence “over any prior agreements.”

The Water Rights Agreement, at paragraph 17, provides for arbitration of all disputes “arising out of the terms” or “in connection therewith.” It states:

In the event of any dispute between the parties arising out of the terms of this agreement, or in connection therewith, the parties agree that any such dispute shall be settled through mutual, binding arbitration and not by court action.

The above arbitration clause is straightforward and broad.

It has been said that “[e]very court that has construed the phrase ‘arising in connection with’ in an arbitration clause has interpreted that language broadly” such that the language reaches every dispute between the parties “having a significant relationship to the contract and all disputes having their origin or genesis in the contract.” (*Rice, supra*, 248 Cal.App.4th at 186, citation omitted.) “To require arbitration, [the] factual allegations need only ‘touch matters’ covered by the contract containing the arbitration clause and all doubts are to be resolved in favor of arbitrability.” (*Ibid.*)

In their opposition, plaintiffs cite *Smythe v. Uber Technologies, Inc.* (2018) 24 Cal.App.5th 327, 333-334 for the principle that even broad arbitration clauses require a “significant relationship” between the dispute and the contract containing the arbitration clause. *Smythe* did not construe the phrase “in connection with.” Even if it had, the relationship here is “significant.”

Plaintiffs have admitted the Turre Well is an important component of their water system. Accordingly, while they contend “this lawsuit raises no claims against Gomes relating, in any way, to the Turre Well,” the requirement is simply that the claims are “in connection with” the Water Rights Agreement. Plaintiffs themselves attach the Water Rights Agreement to their complaint. Further, they admit the Turre Well is an “important component” of the water system. (See Complaint, ¶18.) It would be difficult to construe the present lawsuit as not arising “in connection” with the Water Rights Agreement.

While the Turre Well itself may not have been turned on for over a decade, the contractual language, which is a matter of public record, does not hinge on whether or not certain components are used regularly or not. That the agreement pertains to “replacement wells” in addition to the Turre Well suggests that the agreement is not contingent on use.

This case presents a rather close question in terms of scope of the arbitration clause and whether the claims here are covered. However, since the party opposing arbitration has the burden of demonstrating that an arbitration clause cannot be interpreted to require arbitration of the

dispute, the Court concludes arbitration is required.

13. 9:00 AM CASE NUMBER: MS5031
CASE NAME: PETITION OF: PARAQUAT CASES
HEARING IN RE: APPLICATION FOR PRO HAC VICE AS TO TIM GRAY, ESQ.
FILED BY: CHEVRON U.S.A. INC
TENTATIVE RULING:

Granted.

14. 9:00 AM CASE NUMBER: MS5031
CASE NAME: PETITION OF: PARAQUAT CASES
*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL [FOR PLAINTIFF PATRICIA VALERI STANGL]
FILED BY: PARAQUAT CASES
TENTATIVE RULING:

The motion is granted. Counsel is directed to serve the order relieving counsel in compliance with CRC 3.1362(d). **Counsel is not formally relieved until the order is served on the client and proof of service is filed with the court.**

15. 9:00 AM CASE NUMBER: N25-2444
CASE NAME: PETITION OF: MAUREEN MCCOOEY
HEARING IN RE: PETITION FOR RELEASE OF MECHANICS LIEN
FILED BY:
TENTATIVE RULING:

Petitioner has properly served the petition and notice of hearing. There is no opposition. **The petition is granted.**